Overtime Policy

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Field	Detail
Document reference	BM-HR-POL-003
Version	2.0
Effective date	1 March 2024
Policy owner	Human Resources Department
Supersedes	Version 1.2 (1 July 2021)

1. Purpose

This policy explains who is eligible for overtime at Binaan Maju Sdn Bhd ("the Company"), how overtime is approved, and how it is paid or compensated.

2. Eligibility

2.1 Employees in Non-Executive grades (NE1 to NE4) are eligible for overtime pay under section 5.

2.2 Employees in Executive grades and above (E1 to SM) are not paid overtime. Executives who work a full rest day or public holiday at a project site with HOD approval may receive time off in lieu under section 8.

2.3 Interns are not permitted to work overtime.

3. Normal Working Hours

Employee group	Normal working days	Normal working hours
Office-based	Monday to Friday	8:30 a.m. to 5:30 p.m., with a one-hour lunch break
Site-based	Monday to Saturday	Monday to Friday 8:00 a.m. to 5:00 p.m. (one-hour lunch break); Saturday 8:00 a.m. to 1:00 p.m.

Sunday is the rest day. For sites in states that observe a Friday and Saturday weekend, the rest day is Friday, and the Project Manager publishes the site working days.

Work outside normal working hours, on a rest day or on a public holiday counts as overtime only if it was approved under section 4.

4. Pre-Approval of Overtime

4.1 Overtime must be approved in advance by the Head of Department (HOD), or at project sites by the Project Manager, through the overtime request in MyHR.

4.2 In an emergency, such as a site safety incident, an equipment breakdown or a concrete pour that cannot be stopped, overtime may be approved verbally. It must then be recorded in MyHR within two working days.

4.3 Overtime that was not approved under 4.1 or 4.2 is not paid.

5. Overtime Rates

5.1 Overtime is paid at a multiple of the employee's hourly rate:

When the overtime is worked	Rate
Normal working day, after normal working hours	1.5 × hourly rate
Rest day	2.0 × hourly rate
Public holiday	3.0 × hourly rate

5.2 The hourly rate is calculated as: monthly basic salary × 12 ÷ (52 × normal weekly hours). Normal weekly hours are 40 for office-based employees and 45 for site-based employees.

5.3 Example: a site-based NE2 employee with a basic salary of RM2,340 has an hourly rate of RM2,340 × 12 ÷ (52 × 45) = RM12.00. Three hours of overtime on a normal working day are paid at 3 × 1.5 × RM12.00 = RM54.00.

5.4 Fixed allowances are not included when calculating the hourly rate.

6. Limits on Overtime

6.1 An employee may not work more than 104 hours of overtime in a calendar month. This is a Company limit.

6.2 On a normal working day, overtime may not exceed four hours, so that total working time does not exceed 12 hours in one day.

6.3 HODs must review the monthly overtime report. A department whose overtime exceeds 15% of its normal hours for three consecutive months must submit a manpower plan to HR.

7. Meal and Transport Allowances for Overtime

7.1 The overtime meal allowance is:

- RM15 for at least three hours of overtime on a normal working day;
- RM20 for at least six hours of work on a rest day or public holiday.

Only one overtime meal allowance is paid per day. It is claimed together with the overtime hours in MyHR, not through eClaim.

7.2 If approved overtime ends after 11:00 p.m. and the employee has no transport, the cost of a taxi or e-hailing ride home is reimbursed under the Expense Claims Policy (BM-HR-POL-004), section 3.3.

7.3 The overtime meal allowance is not paid on any day for which the employee receives the outstation meal allowance under the Travel Policy (BM-HR-POL-005).

8. Time Off in Lieu for Executives

8.1 Executives (E1 and above) who work a full rest day or public holiday at a project site, with prior HOD approval, receive one day of time off in lieu (TOIL). Half a day of TOIL is given for at least four hours of work.

8.2 TOIL must be taken within 60 days of the day worked, or it lapses. TOIL cannot be paid out in cash and cannot be converted into annual leave.

8.3 TOIL is recorded and applied for in MyHR under "Time Off in Lieu".

9. Submitting Overtime Claims

9.1 Overtime hours are submitted on the MyHR timesheet by the 5th of the following month and must be verified by the immediate superior.

9.2 Approved overtime is paid with the salary for the month after the overtime was worked.

9.3 Late submissions are paid in the next payroll cycle. Overtime submitted more than 60 days after it was worked is not paid.

10. Amendment History

Version	Effective date	Summary of changes
1.0	1 January 2018	First issue.
1.2	1 July 2021	Site-based working hours updated.
2.0	1 March 2024	Overtime meal allowance for a normal working day raised from RM10 to RM15; TOIL validity extended from 30 to 60 days.